

Terms: DST

SECTION B
SUPPLIES OR SERVICES AND PRICES/COSTS

Item No.	SUPPLIES OR SERVICE	Quantity	U/M	UNIT PRICE	AMOUNT IN US\$	Delivery Date
00001	DUST COLLECTION SYSTEM	1	EA			05/01/2026
00002	Dust Collection System Eval	1	EA			05/01/2026

FN1609-26: Dust Collection System Review and Advise

PART I: THE SCHEDULE

Section A-H

SECTION A – SOLICITATION/CONTRACT FORM

SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

Federal Prison Industries (FPI), which operates under the trade name UNICOR, is a wholly-owned Government Corporation within the Department of Justice, under the Federal Prison System. The Corporation was created by Congress in 1934, and provides employment, education, and training opportunities to inmates under Federal custody. UNICOR operates approximately 62 factories in over 52 locations. Its production lines are extensive and include over 118 different products and services sold to other Federal Agencies and the Department of Defense.

GENERAL INTENTION: It is the intent of this solicitation to result in a

SINGLE award for a fixed price requirements type contract for a dust collection system review and advise at FPI Coleman, FL and FPI Ashland, KY

All interested offerors shall read the solicitation in its entirety prior to submission of any questions.

The period of performance will be 60 days based on the actual award date.

The period of performance may vary depending on actual award date. GUARANTEED MINIMUM DOLLAR AMOUNT IS \$500.00. MAXIMUM AMOUNT OF SERVICE IS TO BE DETERMINED. THE MAXIMUM NOT-TO-EXCEED TOTAL COST FOR THE LIFE OF CONTRACT IS twenty-five thousand dollars \$25,000.00. Solicitation number is FN1609-26 and this solicitation is issued as a Request for Quote (RFQ). THIS REQUIREMENT IS A TOTAL SMALL BUSINESS SET ASIDE. NAICS CODE 541330. THE SMALL BUSINESS SIZE REQUIREMENT FOR NAICS CODE 541330 IS \$25.5 MILLION ANNUALLY. It is anticipated that this solicitation will result in a SINGLE AWARD; offerors must provide pricing for each line within the solicitation to be considered for award.

The following information pertains to the Standard Form 1449 Solicitation: OMB 1103-0018 The offer acceptance period is 180 calendar days. Block 25, Funds (15X4500) will be obligated by each delivery order and not by the contract itself.

Block 31b, Peyton Perry, Contracting Officer Notes: Place of Delivery: UNICOR, Federal Prison Industries FCI Coleman 846 NE 54th Terrace, Coleman, FL 33521.

All solicitations (also future procurement) and any other information (amendments, etc.) may be obtained through Sam.gov at www.sam.gov. ANY QUESTIONS REGARDING REQUIREMENTS LISTED, SPECIFICATION OR THE SOLICITATION PROCESS ARE TO BE ASKED in writing to Peyton Perry at peyton.perry@usdoj.gov. At no time should offerors contact factory or central office staff with questions regarding this solicitation. NO questions will be answered via telephone. The deadline for submission of questions and NCIC background form is Wednesday, March 25, 2026, at 2:00

PM EST. No questions will be answered after this date and time. A site visit is required by any vendor wishing to submit an offer. The site visit for FPI Ashland will be conducted on Monday, March 30, 2026. The site visit for Coleman will be conducted Wednesday, April 1, 2026.

CLOSING DATE AND TIME FOR THE SUBMISION OF OFFERS FOR THE SOLICIATION IS Wednesday, April 15, 2026 AT 2:00 PM EST. All offerors must complete the following information prior to submission of offer to be considered for award, in addition to the requirements of Section L.

- 1.,,SAM REGISTRATION WWW.SAM.GOV
- 2.,,Provide pricing for each line item
- 3.,,Section L - Business Management Questionnaire All offerors must complete the Business Management questionnaire with three references from the past three (3) years that are same or similar in scope to this requirement. This includes size of requirement.
- 4.,,UNIQUE ENTITY ID NUMBER_____
- 5.,,TIN Number _____
- 6. Pricing Spreadsheet

NOTE: UNICOR may add other factories or materials to contract at a later date through a modification to the awarded contract.

ANY REFERENCE TO A SPECIFIC BRAND IN ANY ITEMS SPECIFICATION IS FOR REFERENCE PURPOSES ONLY.

SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

C1. DESCRIPTION/STATEMENT OF WORK.

Federal Prison Industries (UNICOR) is soliciting quotes for potential contractors to provide engineering services to evaluate dust collection systems at the current wood furniture factories at FCC Coleman and FCI Ashland. The offeror will then need to advise and create a statement of work (SOW) for a sufficient replacement system which will meet each factory's needs.

FCC Coleman: Medium UNICOR Wood Factory, 846 NE 54th Terrace, Coleman, FL 33521
FCI Ashland: Low UNICOR Wood Factory, ST. ROUTE 716, Ashland, KY 41105

The proposed scope of work shall include the following but not limited to:

„Evaluation of the current dust collection systems and recommendations on new dust collection specifications in order to establish a SOW to purchase and install a new dust collection system based off professional vendor's subject matter expertise evaluations to include reviewing, equipment being used and what is needed for newer upcoming equipment in addition to current equipment. The evaluation shall include, but not limited to, duct layout, system balancing, fire prevention to the National Fire Protection Association (NFPA) standards, including fire dampers and fire spark suppression sprinklers and layout to create a SOW.

„Detailed report of findings with recommendations.

„Draft a Statement of Work addressing the needs of the factories for new replacement system which will meet the factory's needs.

„Provide technical evaluation and expertise for received proposals after solicitation for replacement with new system.

„Instructions for Offer. Offerors are not required to submit for both locations. However, vendors must provide an offer for all line items included for the location of interest. All offerors shall utilize the document titled "Bid Tab" to provide the financial part of their offer.

„Performance of the following shall begin within 30 calendar days after award. The requirement must be completed within 120 calendar days.

„Evaluation of the factory and what is needed for a replacement dust collection system.

„Detailed report of findings with recommendations based on subject matter expertise.

„Draft a Statement of Work addressing suggested recommendations and replacement.

„The following are tentative and contingent upon UNICOR's requirement to proceed with replacement equipment and services of the dust collection system:

„Provide technical evaluation and expertise for proposals of replacing current systems with a new system.

„Bidder is required to provide as much descriptive literature and PDF Drawings for installation and overview with written report of findings and statement of work. If any substitutions are made from specifications, they are to be clearly labeled and explained for evaluation and acceptance during BID review, otherwise specs above will be expected to be met.

A site visit is required for this requirement. The dates of site visits will be as follows:

FPI Ashland, 888 State Rt. 716, Ashland, KY 41102

Monday 03/23/2026

FPI Coleman 846 NE 54th Terrace, Coleman, FL 33521

Wednesday 03/25/2026

Each vendor may have two people attend the site visit. A background form (attached to this solicitation) must be completed and submitted by everyone attending the site visit no later than

The full period of performance shall not exceed two (2) months from award unless a formal modification occurs to the award by the Contracting Officer.

Worksite Conditions and Security

The contractors shall be always escorted by UNICOR staff. No equipment will be provided by the Government to perform any of the work performed by the contractor. Due to this site being a secure government facility, there will be absolutely no ethernet, wi-fi, internet, or update provisions access allowed for the diagnostic. A list of all tools required to complete services must be submitted for prior approval.

License and Insurance

The contractor shall be licensed and approved for doing business in the following areas:

• „State of Florida, the county of Sumter, and/or the city of Coleman

• „State of Kentucky, the county of Boyd, and/or the city of Ashland

”

Proof of insurance shall be submitted to the Contracting Officer before

initiation of service. The company shall maintain a policy(ies) of commercial general liability insurance with the limits of liability of not less than five hundred thousand dollars (\$500,000) per occurrence and one million dollars (\$1,000,000) in the aggregate providing coverage for, among other things, damages caused by the Company to the Customer's property. All insurance required to be maintained by the Company pursuant to this Agreement and shall be maintained with responsible insurance companies qualified to do business, and good standing, in the state of FLORIDA and KENTUCKY, and which have a rating of at least in the most current A.M. Best's Insurance Guide or such similar rating as ay be reasonably expected.

SECTION D – PACKAGING AND MARKING

This section left blank intentionally.

SECTION E - INSPECTION AND ACCEPTANCE

This section left blank intentionally.

SECTION F - DELIVERIES OR PERFORMANCE

F.1 FPI 1000F1 DELIVERY ORDER Supplement: LCL APPR Delivery Orders can be submitted to offerors via fax or email. UNICOR does not mail delivery orders. Order confirmation shall be signed and dated in blocks 30a, b and c of the delivery order and confirmation must be returned to the contracting officer within 24 hours of order receipt. Order confirmation containing the following information must be returned to the submitting Contract Officer.

- a. Date of order
- b. Contract number and order number
- c. UNICOR Item number and description, quantity, and unit price
- d. Delivery or performance date
- e. Place of delivery
- f. Shipping instructions
- g. Accounting data

h. Any other pertinent information

Performance shall be occur seven (7) days after receipt of order.

****PLEASE NOTE, DELIVERY DAY IS CALENDAR DAYS******

Service Locations and hours are as follows:

UNICOR Ashland - 888 State Rt. 716, Ashland, KY 41102

UNICOR Coleman – 846 NE 54th Terrace, Coleman, FL 33521

WORK HOURS: 8:00 AM TO 2:30 P<(>,<)>

MONDAY-FRIDAY EXCLUDING FEDERAL HOLIDAYS

F.2 FPI 1000F2 TIME OF DELIVERY/DELIVERY SCHEDULE Supplement: LCL APPR

16.505(a) and the clause located in FAR 52.216-18 entitled "Ordering"

and included in Section I, of this contract, any supplies and/or

services to be furnished under this contract shall be ordered by

issuance of delivery orders by individuals listed below:

Josh Hummel

Contract Specialist

570-547-1990 ext 4651

email joshua.hummel2@usdoj.gov

SECTION G - CONTRACT ADMINISTRATION DATA

G1. JAR 2852.201-70 Contracting Officer's Representative (COR) (NOV 2020)

(a) TBD is hereby designated to act as Contracting Officer's

Representative (COR) under (contract #TBA), for the period of (specify

the performance period of the contract that the designation covers).

(b) Performance of work under this contract is subject to the technical direction of the COR identified above, or another representative designated in writing by the Contracting Officer. The term "technical direction" includes, without limitation, the following:

(i) Receiving all deliverables;

(ii) Inspecting and accepting the supplies or services provided in accordance with the terms and conditions of this contract;

(iii) Clarifying, directing, or redirecting the contract effort, including shifting work between work areas and locations, filling in details, or otherwise serving to accomplish the contractual statement of work to ensure the work is accomplished satisfactorily;

(iv) Evaluating performance of the Contractor; and

(v) Certifying all invoices/vouchers for acceptance of the supplies or services furnished for payment.

(c) The COR does not have the authority to issue direction that:

(i) Constitutes a change of assignment or work outside the contract specification/work statement/scope of work.

(ii) Constitutes a change as defined in the clause entitled "Changes" or other similar contract term.

(iii) Causes, in any manner, an increase or decrease in the contract price or the time required for contract performance;

(iv) Causes, in any manner, any change in a term, condition, or specification or the work statement/scope of work of the contract;

(v) Causes, in any manner, any change or commitment that affects price, quality, quantity, delivery, or other term or condition of the contract or that, in any way, directs the contractor or its subcontractors to

operate in conflict with the contract terms and conditions;

(vi) Interferes with the contractor's right to perform under the terms and conditions of the contract;

(vii) Directs, supervises, or otherwise controls the actions of the Contractor's employees or a Subcontractor's employees.

(d) The Contractor shall proceed promptly with performance resulting from the technical direction of the COR. If, in the opinion of the Contractor, any direction by the COR or the designated representative falls outside the authority of (b) above and/or within the limitations of (c) above, the Contractor shall immediately notify the Contracting Officer.

(e) Failure of the Contractor and Contracting Officer to agree that technical direction is within the scope of the contract is a dispute that shall be subject to the "Disputes" clause and/or other similar contract term.

(f) COR authority is not re-delegable.

This contract will be administered by:

PRIMARY:

UNICOR,

Federal Prison Industries

846 NE 54th Terrace

Coleman, FL 33521

Attn: Peyton Perry, Supervisory Contract Specialist

352-689-4068

SECONDARY:

UNICOR

Federal Prison Industries

Rt 15, 2 miles north of Allenwood

Allenwood, PA 17810

Attn: Josh Hummel, Contract Specialist

570-547-1990 ext 4651

Written communications shall make reference to the contract number and shall be mailed to the address of the primary contracting officer above.

In the event Ms. Perry is unavailable, please mail correspondence to the secondary contact.

ADDRESS TO WHICH REMITTANCE SHOULD BE MAILED:

Offeror shall indicate below the complete mailing address (including the nine digit ZIP code) to which remittance should be mailed if such address is other than that shown in Block 15A, Page 1 (Standard Form 33), they shall enter it below:

(a) Payee Name (Contractor): _____ (b)

Check Remittance Address: _____

Any questions or problems regarding payment should be directed to the Business Manager at the following locations: UNICOR FPI, CENTRAL ACCOUNTS PAYABLE, PO BOX 11849, LEXINGTON KY 40578-1849 ALL INVOICES SHALL REFERENCE PURCHASE ORDER NUMBER, NOT THE CONTRACT NUMBER. INVOICES RECEIVED WITHOUT THE PURCHASE ORDER NUMBER WILL BE REJECTED AND RETURNED TO VENDOR. ALL INVOICES MAY BE EMAILED TO ACCOUNTS.PAYABLE@USDOJ.GOV.

NOTE TO VENDORS: IN ACCORDANCE WITH THE PROMPT PAYMENT ACT, INVOICES THAT DO NOT AGREE WITH THE PURCHASE ORDER/DELIVERY ORDER AMOUNTS WILL BE RETURNED TO THE VENDOR AT THE ADDRESS LOCATED IN BLOCK 17A OF THE SF1449.

Vendor Payment:

Offerors must submit a new ACH form whenever any payment information is changed (i.e. new bank, account, routing). Failure to submit new information will result in delayed or non-payment of product/service until information is properly updated. Offerors may obtain the ACH form by logging on to the following website:

www.unicor.gov

Doing Business with UNICOR Electronic Vendor Payments

Click, download form and submit with written proposal.

The ACH is the first form, just click on form and print to your printer, fill out and return to the contracting officer. NOTE: UNIQUE IDENTIFICATION NUMBER on ACH form shall match information provided in SAM. Failure to provide matching UNIQUE IDENTIFICATION NUMBER information may result in your firm not receiving an award.

All financial information must be updated in SAM.gov if any changes are made. Sam.gov must have updated and current information at all times.

NOTICE TO GOVERNMENT WHEN CONTRACTOR(S) DELAYS:

In the event the contractor(s) encounter difficulty in meeting performance requirements, or when there is an anticipated difficulty in complying with the delivery terms or completion dates, or whenever the contractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely delivery/performance of this contract, the contractor must immediately notify the Field Administrative Contracting Officers at UNICOR (location) or in writing, giving pertinent details. This information will not be construed as a waiver by the Government of the required delivery schedule, or the Governments rights to impose consideration against delinquencies or other remedies provided by this contract.

Any amendments issued to this solicitation shall be synopsized in the same manner as this solicitation and must be acknowledged by each offeror. Offeror must hold prices firm for 180 calendar days from the date specified for receipt of offers. Offers or modifications to offers received at the address specified for the receipt of offers after the exact time specified may not be considered.

All FAR forms, clauses and provisions necessary to submit an offer may be accessed at the following web site: <http://acquisition.gov/far>. This combined synopsis/solicitation and necessary forms are available on web site: <http://www.acquisition.gov/far>.

(a)„In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

„Edward Porras, FPI Controller

„400 First St NW

„Washington, DC 20534

„Email: Edward.Porras@usdoj.gov

(b)„Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c)„Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution.

When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

Alternate I (Sept 2019). As prescribed in 16.506(j), add the following paragraph (d) to the basic clause.

(d) Contracts used by multiple agencies.

(1) This is a contract that is used by multiple agencies. Complaints from Contractors concerning orders placed under contracts used by multiple agencies are primarily reviewed by the task-order and delivery-order Ombudsman for the ordering activity.

(2) The ordering activity has designated the following task-order and delivery-order Ombudsman for this order:

James Mitchell, Acting Senior Deputy Assistant Director

PO Box 727

Minersville, PA 17954

Phone: (570) 544-7331

Email: James.Mitchell3@usdoj.gov.

(3) Before consulting with the task-order and delivery-order Ombudsman for the ordering activity, the Contractor is encouraged to first address complaints with the ordering activity's Contracting Officer for resolution. When requested by the Contractor, the task-order and

delivery-order Ombudsman for the ordering activity may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

SECTION H SPECIAL CONTRACT REQUIRMENTS

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PART II: CONTRACT CLAUSES & PROVISIONS

Section I Contract Clauses

I1. 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (Jan 2017)

I2. 52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards. (Jun 2020)

I3. 52.204-13 System for Award Management Maintenance. (Oct 2018)

I4. 52.204-18 Commercial and Government Entity Code Maintenance. (Aug 2020)

I5. 52.204-19 Incorporation by Reference of Representations and Certifications. (Dec 2014)

I6. 52.204-25 Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

I7. 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Nov 2025)

I8. 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment—

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final

decision as required by FAR part 33 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on–

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under

the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a

cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically

authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

I9. 52.219-28 Postaward Small Business Program Rerepresentation (Dec 2025)

I10. 52.222-3 Convict Labor (Dec 2025)

I11. 52.222-36 Equal Opportunity for Workers with Disabilities (Dec 2025)

I12. 52.222-37 Employment Reports on Veterans (Dec 2025)

I13. 52.222-41 Service Contract Labor Standards (Dec 2025)

I14. 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

I15. 52.222-50 Combating Trafficking in Persons (Dec 2025)

I16. 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026 (Dec 2025)

I17. 52.222-62 Paid Sick Leave Under Executive Order 13706 (Dec 2025)

I18. 52.223-23 Sustainable Products (Dec 2025)

I19. 52.232-33 Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)

I20. 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

I21. 52.233-1 Disputes (Nov 2025)

I22. 52.233-3 Protest after Award (Nov 2025)

I23. 52.233-4 Applicable Law for Breach of Contract Claim (Nov 2025)

I24. 52.236-22 Design Within Funding Limitations (August 2025)

I25. 52.236-23 Responsibility of the Architect-Engineer Contractor

(August 2025)

I26. 52.236-24 Work Oversight in Architect-Engineer Contracts (Apr 1984)

I27. 52.236-25 Requirements for Registration of Designers (June 2003)

I28. 52.240-91 Security Prohibitions and Exclusions (Nov 2025)

(a) Definitions. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations,

and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to

as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a

customer of telephone provider A to a customer of telephone company B)

or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance,

logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control

the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) Prohibitions on providing or using specific products or services in performance of contract. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) Procedures. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) Exemptions, exceptions, and waivers. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.

(1) Certain telecommunications and video surveillance equipment, systems, or services.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses

covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates,

see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) Sudan prohibition. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) Iran prohibitions.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) Governmentwide exclusion and removal orders.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) Reasonable inquiry. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) Removal of prohibited products and services. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) General report.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would

comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) New FASCSA orders report.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

I25. DOJ-01 Whistleblower Information Distribution (OCT 2021)

Within 30 days of contract award, the contractor and its subcontractors must distribute the "Whistleblower Information for Employees of DOJ Contractors, Subcontractors, Grantees, or Sub-Grantees or Personal Services Contractors" ("Whistleblower Information") document to their employees performing work in support of the products and services delivered under this contract

(<https://oig.justice.gov/sites/default/files/2020-04/NDAA-brochure.pdf>).

By agreeing to the terms and conditions of this contract, the prime contractor acknowledges receipt of this requirement, in accordance with 41 U.S.C. § 4712 and FAR 3.906 & 52.203-17, and commits to distribution.

Within 45 days of award, the contractor must provide confirmation to the contracting officer verifying that it has distributed the whistleblower information as required.

I26. DOJ-08 Continuing Contract Performance During a Pandemic Influenza or Other National Emergency (OCT 2007)

During a Pandemic or other emergency we understand that our contractor workforce will experience the same high levels of absenteeism as our federal employees. Although the Excusable Delays and Termination for Default clauses used in government contracts list epidemics and quarantine restrictions among the reasons to excuse delays in contract performance, we expect our contractors to make a reasonable effort to keep performance at an acceptable level during emergency periods.

The Office of Personnel Management (OPM) has provided guidance to federal managers and employees on the kinds of actions to be taken to ensure the continuity of operations during emergency periods. This guidance is also applicable to our contract workforce. Contractors are expected to have reasonable policies in place for continuing work performance, particularly those performing mission critical services, during a pandemic influenza or other emergency situation.

The types of actions a federal contractor should reasonably take to help

ensure performance are:

- Encourage employees to get inoculations or follow other preventive measures as advised by the public health service.
- Contractors should cross-train workers as backup for all positions performing critical services. This is particularly important for work such as guard services where telework is not an option.
- Implement telework to the greatest extent possible in the workgroup so systems are in place to support successful remote work in an emergency.
- Communicate expectations to all employees regarding their roles and responsibilities in relation to remote work in the event of a pandemic health crisis or other emergency.
- Establish communication processes to notify employees of activation of this plan.
- Integrate pandemic health crisis response expectations into telework agreements.
- With the employee, assess requirements for working at home (supplies and equipment needed for an extended telework period). Security concerns should be considered in making equipment choices; agencies or contractors may wish to avoid use of employees' personal computers and provide them with PCs or laptops as appropriate.
- Determine how all employees who may telework will communicate with one another and with management to accomplish work.
- Practice telework regularly to ensure effectiveness.
- Make it clear that in emergency situations, employees must perform all duties assigned by management, even if they are outside usual or customary duties.
- Identify how time and attendance will be maintained.

It is the contractor's responsibility to advise the government contracting officer if they anticipate not being able to perform and to work with the Department to fill gaps as necessary. This means direct communication with the contracting officer or in his/her absence, another responsible person in the contracting office via telephone or email messages acknowledging the contractors notification. The incumbent contractor is responsible for assisting the Department in estimating the adverse impacts of nonperformance and to work diligently with the Department to develop a strategy for maintaining the continuity of operations.

The Department does reserve the right in such emergency situations to

use federal employees, employees of other agencies, contract support from other existing contractors, or to enter into new contracts for critical support services. Any new contracting efforts would be acquired following the guidance in the Office of federal Procurement Policy issuance "Emergency Acquisitions", May, 2007 and Subpart 18.2. Emergency Acquisition Flexibilities, of the federal Acquisition Regulations.

I29. 52.252-2 Clauses Incorporated By Reference (Feb 1998)

PART III: LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS

SECTION J – LIST OF ATTACHMENTS

J1. Solicitation FN1596-25

J2. Bid Tab (Excel Spreadsheet)

J3. ACH Form

J4. NCIC Background Form

J5. SF330 Architect-Engineer Qualifications

PART IV: REPRESENTATIONS AND INSTRUCTIONS

Section K-M

Section K – Representations, Certifications, and Other Statements of Bidders

K1. The Federal Acquisition Regulation (FAR) will require the use of the Online Representations and Certifications Application in The System for Award Management (SAM) in Federal solicitations as a part of the proposal submission process. The System for Award Management (SAM) is combining eight federal procurement systems and the Catalog of Federal Domestic Assistance into one new system. The benefits of SAM include streamlined and integrated processes, elimination of data redundancies, and reduced costs while providing improved capability.

With one user ID and password, SAM will benefit contractors by providing

access to all the capabilities associated with:

- 1)„Registering to do business with the Government
- 2)„Representing/Self-Certifying as a Small Business SAM.gov
- 3)„Business Opportunities (SAM.gov)

With SAM you now have the ability to enter and maintain your representation and certification information, at your convenience, via the Internet at www.sam.gov . In addition, rather than receiving and reviewing paper submissions, government contracting officials can access SAM and review your information online as a part of the proposal evaluation process. You will no longer have to submit representations and certifications with each offer. Instead, a solicitation will contain a single provision that will allow you to either certify that all of your representations and certifications in SAM are current, complete and accurate as of the date of your signature, or list any changes.

You will need to review and/or update your SAM record annually in order to maintain its active status.

If you have already registered in the SAM database, please complete information below and return with written proposal.

Certification that all of your representations and certifications in SAM are current.

Reps and Certs Data is complete and accurate as of

Date:_____

Signature:_____

Changes:_____

K2. 52.204-16 Commercial and Government Entity Code Reporting. (Aug 2020)

K3. 52.204-17 Ownership or Control of Offeror. (Aug 2020)

K4. 52.204-29 Federal Acquisition Supply Chain Security Act Orders -

Representation and Disclosures. (Dec 2023)

K5. 52.209-2 Prohibition on Contracting with Inverted Domestic
Corporations-Representation (Nov 2025)

K6. 52.216-27 Single or Multiple Awards (Oct 1995)

Section L – Instructions, Conditions, and notices to Bidders

LI. 52.204-7, System for Award Management (Nov 2024)

L2. 52.252-1 Solicitation Provisions Incorporated by Reference. (Feb
1998)

L3. FPI 999.999-9 BUSINESS MANAGEMENT QUESTIONNAIRE

Supplement: LCL APPR

INSTRUCTIONS: Offerors will identify previous federal, state, local
government and private contracts, which they are currently performing on
or have performed on and that are similar in scope to the requirement
being evaluated. List at least three (3) and no more than five (5)
contracts for evaluation. References provided shall be for contracts
performed within the past three (3) to five (5) years. All references
provided may or may not be used in the evaluation of the contractor's
performance.

List one reference per form. (Form may be duplicated)

NOTE: If you performed any similar contracts for UNICOR, list them
first.

Reference 1:

Name, Address, Telephone number, email address and point of contact.

Contract Number:

Type of Contract:

Contract Dollar Value:

Description of supply or service provided:

Reference 2:

Name, Address, Telephone number, email address and point of contact.

Contract Number:

Type of Contract:

Contract Dollar Value:

Description of supply or service provided:

Reference 3:

Name, Address, Telephone number, email address and point of contact.

Contract Number:

Type of Contract:

Contract Dollar Value:

Description of supply or service provided:

L4. RESPONSIBLE PROSPECTIVE CONTRACTORS

Supplement: LCL APPR

Per FAR subpart 9.1, the following data is required from prospective contractors to determine financial responsibility.

Name of Bank/Financial Institution:

Address:

Telephone Number:

Point of Contact:

L5. 52.233-2 Service of Protest (Nov 2025)

SECTION M - EVALUATION FACTORS FOR AWARD

MI. . 52.212-1

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services (Nov 2025)

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable,
Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the
provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of
information, representations, and certifications (other than those
collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms,
conditions, and provisions included in the solicitation and any
solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the
prices in its offer firm for 60 calendar days from the date specified
for receipt of offers, unless another time period is specified in an
addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of
offers.

(1) Offerors are responsible for submitting offers and any modifications
or revisions to the Government office designated in the solicitation by
the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time
specified for receipt of offers is "late" and will not be considered
unless it is received before award is made and the Contracting Officer
determines that accepting the late offer would not unduly delay the
acquisition. However, a late modification of an otherwise successful
offer that makes its terms more favorable to the Government will be
considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government
processes so that offers cannot be received at the Government office

designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

See Section M3. for explanation of how each item will be evaluated.

M2. The Contracting Officer will make award to the offeror(s) whose proposal represents the best overall expected value and that is considered most advantageous to its interests based on the criteria specified in this solicitation. The Contracting Officer will develop a level of confidence assessment rating for each offeror(s). This rating will be used to adjust the Government's evaluation of the offeror's proposal, and may highly influence the determination of which offeror(s) represents the best overall expected value.

Those subfactors, as set forth in "Evaluation Criteria", upon which a comparative ranking of proposals will be based in accordance with relative order of importance accorded each factor:

Technical Ability will be rated as a score of Pass or Fail.

Past Performance will be rated as a score of Excellent, Good, Fair, and Poor by the following criteria:

Offerors' past performance will first be evaluated for relevancy and recentness. Only relevant, recent past performance contracts will then be evaluated for the offerors performance and given an adjectival rating as listed above. The offeror will then be given an overall confidence assessment rating, using the adjectival ratings listed above.

The adjectival rating will be awarded by the representative giving the past performance review. However, if the past performance is obtained from CPARS, the Contract Officer will determine the appropriate adjectival rating based on the information provided in CPARS.

Pricing

Offerors are to provide pricing for each item on the solicitation. The price proposal will be evaluated through price competition of this acquisition and the Government estimate. Fairness and reasonability will be determined accordingly by the contracting officer.

Offers may propose discount payment terms such as 5% - 20, Net 30, 4% - 10, Net 30, 2% - 10, Net 30 for consideration, as part of their pricing proposal.

M3. Offeror(s) are advised that the Government intends to evaluate proposals and award without discussions. Therefore, the initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary.

M4. Tradeoff Process: It may be in the government's best interest to consider award to other than the lowest priced offeror(s) or other than the highest technical rated offeror(s). This process may include tradeoffs among cost/price and non-cost factors and allows the Government to accept other than the lowest prices proposal if the perceived benefits of the higher priced proposal are determined to merit the additional cost.

M5. Each proposal package shall consist of the following completed and signed documents:

1. „SSF 1449
2. „Amendments
3. „SAM Registration
4. „Unique Entity Identification Number
5. „TIN Number
6. „(3) Business Management Questionnaires
7. „(3) Completed Past Performance Surveys
8. „Pricing - Excel Price Sheets
9. „SF330 Architect-Engineer Qualifications

M6. Blank Business Management Questionnaire forms can be downloaded from www.unicor.gov; click on Business Opportunities, then click on Supplying UNICOR, and select the Vendor Questionnaire PDF file on the left.

Vendors shall submit signed and dated offers either by postal mail and email. The email address to submit offers is peyton.perry@usdoj.gov. All offerors shall confirm the receipt of their proposal with Peyton Perry Contract Specialist.

M7. The date and time for receipt of proposals is Wednesday, April 15, 2026 at 2:00 PM, EST. Offers must indicate Solicitation No. FN1609-26, time specified for receipt of offer, name, address and telephone number of offeror, technical description of the services being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. Offeror must ensure all SAM documentation is completed and current, Representations and Certifications FAR 52.212-3, and include acknowledgment of all amendments, if issued.

Any amendments issued to this solicitation shall be synopsisized in the same manner as this solicitation and must be acknowledged by each offeror. Offeror must hold prices firm for 120 calendar days from the date specified for receipt of offers. Offers or modifications to offers received at the address specified for the receipt of offers after the exact time specified may not be considered.

Questions regarding this requirement may be addressed in writing to Peyton Perry at peyton.perry@usdoj.gov. All FAR forms, clauses and provisions necessary to submit an offer may be accessed at the following web site: <http://acquisition.gov/far>.